

IV. CONCLUSION

Based on the foregoing, the unopposed demurrer to all causes of action is SUSTAINED with ten (10) days LEAVE TO AMEND.

The Cross-Defendants' motion to strike each cause of action is DENIED as procedurally improper and MOOT based on the court's ruling on the demurrer. The Court will provide the formal Order.

Calendar Lines # 9

Case Name Mid-Century Insurance Company vs Justin Collins

Case No. 25CV477635

Motion to Compel Verified Responses to Form Interrogatories and Request for Sanctions

I. BACKGROUND

This case stems from a subrogation claim arising from April 24, 2024 motor-vehicle accident. On October 15, 2025, Plaintiff Mid-Century Insurance Company ("Mid-Century") filed a Complaint for damages in the amount of \$41,216.86 against Defendant Justin Collins ("Collins").

Before the Court is Plaintiff Mid-Century's motion to compel verified responses to form interrogatories ("FROG"), set one, and sanctions that was filed on May 29, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Defendant Collins's former attorneys of record, Jason J. Wasinda and Elizabeth Meyers. Subsequently, Defendants' counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and represented that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted.

The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: notice of motion to compel verified response to FROG, memorandum of points and authorities in support of the motion; Declaration of Megan A. Sarraile and attached Exhibits A- C (totaling 41 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (*Steele v. Totah* (1986)

180 Cal.App.3d 545, 549; *Appleton v. Sup. Ct.* (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (*Id.*). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear on the face of the declaration in some form.” (*Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 612).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co., supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

III. ANALYSIS

Here, Plaintiff served initial discovery including FROGs, set one on January 21, 2026 on the defendant's then attorney of record. (Exhibit A, Declaration of Sarrail ¶ 3). On February 23, 2026, the defendant's counsel requested an extension to serve responses to March 10, 2026, which Plaintiff's granted. (Exhibit C attached to Declaration of Sarrail). Defendants served unverified responses on March 9, 2026, with a page noting “verification to follow.” (Exhibit B, Declaration of Sarrail ¶ 4). On May 15, 2026, Plaintiff's counsel submitted an email to defense stating she would seek a motion to compel unless verifications were provided by May 22, 2026. (Exhibit C). No verifications were provided at the time of the filing of the present motion. (Declaration of Sarrail ¶ 6).

Subsequently, in June 2026, Defendants' counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted.

Over five months have lapsed since responses to FROGs were served without verification, which is required. An unverified discovery response is treated as no response. (*Steele v. Totah, supra*, 180 Cal.App.3d at 549).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court GRANTS the motion to compel verifications to the FROGs.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)).

Plaintiff’s counsel seeks a total of \$660.00 in sanctions for pursuing this motion. Plaintiff’s counsel seeks two hours for work expended on this motion and an anticipated hour for appearing on the motion at the hourly rate of \$200.00. Plaintiff’s counsel seeks \$60.00 for costs expended on filing this motion.

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court GRANTS two hours of time expended on the motion at the requested hourly rate of \$200.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$460.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to FROGS, set one. The Defendant is to provided verifications to the response to FROGs he served on March 9, 2026 within twenty (20) days from this hearing. The Court GRANTS sanctions against Defendant Collins in the amount of \$460.00. Defendant is to pay the sanctions amount within twenty (20) days from this hearing.

The Court will prepare the formal Order.